RESOLUTION NO. 2026-032

RESOLUTION OF THE MARIN COUNTY BOARD OF SUPERVISORS CALLING FOR AN ELECTION TO BE CONSOLIDATED WITH THE NOVEMBER 3, 2026 GENERAL ELECTION ADOPTING AN INCREASE IN A SPECIAL TAX UPON PARCELS LOCATED WITHIN COUNTY SERVICE AREA NO. 29 FOR THE PURPOSE OF ONGOING MAINTENANCE DREDGING IN PARADISE CAY (CSA 29) ALONG WITH THE NORTH AND SOUTH ENTRY CHANNELS TO SAN FRANCISCO BAY EFFECTIVE JULY 1, 2027; AND AUTHORIZING THE COUNTY REGISTRAR OF VOTERS TO TAKE APPROPRIATE ACTION

WHEREAS, the Board of Supervisors, as the governing body of County Service Area No. 29 (CSA 29), and at the request of the CSA 29 Advisory Board, determines that it is in the best interests of the property owners within CSA 29 to provide ongoing maintenance dredging to the canals and waterways within Paradise Cay along with the north and south entry channels into San Francisco Bay and to fund said services through the continued levying of a special tax; and

WHEREAS, pursuant to Government Code sections 25215.2 and 50075, et seq., and in compliance with California Constitution Article XIIIC, the Board of Supervisors is hereby authorized to adopt this Resolution and establish and levy (subject to voter approval) a special tax upon all real property original lots located within CSA 29, including those original lots delineated in: Paradise Cay Map No. 1, Paradise Cay Map No. 2, Paradise Cay Map No. 3, Paradise Cay Map No. 4, Map of Paradise Cay North, Map of Paradise Cay – South Cay Unit 1, and Map of Paradise Cay – South Cay Unit 2 and as adjusted by the Marin County Local Agency Formation Commission as indicated in the Certificate of Completion dated June 25, 2020; and

WHEREAS, a previous election of imposition of special taxes was held in CSA 29 on November 8, 2016, which expires fiscal year 2026-2027 and the Board of Supervisors proposes to continue the existing special tax in an increased amount of $2,200 per annum per parcel on each original lot in CSA 29 beginning fiscal year 2027-28, and continuing through fiscal year 2036-37, with increases of three percent (3%) per year; and

WHEREAS, the special tax, if approved, will not exceed the County spending limit as pursuant to California Constitution Article XIIIB.

NOW, THEREFORE BE IT RESOLVED that this Board hereby calls an election to be consolidated with the November 3, 2026 general election, at which election the issue to be presented to the voters of CSA 29 is as follows:

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COUNTY SERVICE AREA NO. 29
PARADISE BAY DREDGING SPECIAL TAX MEASURE

For ongoing maintenance dredging in the principal waterways of Paradise Cay along with the north and south entry channels to San Francisco Bay, shall the measure for an annual parcel tax in County Service Area No. 29, for $2,200 per lot per year commencing in July 2027 providing an estimated $272,800 and automatically increasing 3% each year thereafter, for a total of ten years, be adopted?

BE IT FURTHER RESOLVED that the special tax shall be collected annually by the Marin County Tax Collector in the same manner and subject to the same penalties as County property taxes are collected. The County shall be entitled to deduct its reasonable costs incurred in collecting the special tax before such tax is remitted to CSA 29. Whenever possible, CSA 29 must defer to reasonable requests from the Marin County Tax Collector to accommodate exemptions for parcels that are roads or creek beds, as wells as split parcels ineligible for an assessor parcel combination solely because the parcels are not in the same tax rate area.

BE IT FURTHER RESOLVED that the election is consolidated with the statewide general election and other elections to be held November 3, 2026.

BE IT FURTHER RESOLVED that the special tax shall not become effective unless approved by two-thirds (2/3) of the registered voters within CSA 29 and if approved by two-thirds (2/3) vote of the electorate, for the purposes outlined herein, is due from all original lot parcels within CSA 29 as reflected upon the rolls of the County Assessor at the same time ad valorem tax is due and is to be collected in the same manner. The Marin County Tax Collector shall collect the tax and any penalty or interest due hereinunder.

BE IT FURTHER RESOLVED that pursuant to the provisions of Elections Code Section 1002, the Marin County Board of Supervisors authorizes and directs the Marin County Registrar of Voters to render all services necessary for the conduct of the election. The costs of the ballot election shall be borne by CSA 29.

BE IT FURTHER RESOLVED that the special tax shall be deemed established and shall be in effect with the 2027-28 fiscal year upon certification of the election results evidencing approval by at least two-thirds (2/3) of the registered voters voting thereon and remain in effect through fiscal year 2036-37.

BE IT FURTHER RESOLVED that pursuant to Government Code Section 50077.5 and Code of Civil Procedure Section 860, any judicial action or proceeding to attack, review, set aside, or annul this special tax, if approved by the voters, shall be commenced within 60 days of the effective date of this resolution.

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BE IT FURTHER RESOLVED that failure of this measure shall not affect the existing special tax, previously authorized by voters effective through fiscal year 2026-2027.

BE IT FURTHER RESOLVED that if any part of this Resolution is held invalid the remainder of the Resolution shall not be affected.

PASSED AND ADOPTED at a regular meeting of the Board of Supervisors of the County of Marin held on this 19th day of May 2026, by the following vote:

AYES: SUPERVISORS: Mary Sackett, Brian Colbert, Dennis Rodoni, Eric Lucan

NOES:

ABSENT: SUPERVISOR: Stephanie Moulton-Peters

PRESIDENT, BOARD OF SUPERVISORS

ATTEST:

DEPUTY CLERK

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